

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mimi Western	Team: Squad #12	CCRB Case #: 202409940	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 08/01/2024 7:35 PM, Thursday, 08/01/2024 7:45 PM	Location of Incident: Outside § 87(2)(b) 70th Precinct Stationhouse	18 Mo. SOL 2/1/2026	Precinct: 70		
Date/Time CV Reported Fri, 10/04/2024 5:54 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 10/04/2024 5:54 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Piero Lasaponara	01078	947157	WARRSEC
2. PO Andre Anderson	15389	967749	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Denzel Morris	04135	967617	070 PCT
2. PO Henry Lam	04101	978006	070 PCT
3. PO Andrea Lasaponara	01326	954213	070 PCT
4. PO Kimberly Lewis	05389	960803	070 PCT
5. PO Gissette Fernandez	16238	967871	070 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Piero Lasaponara	Abuse: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara stopped § 87(2)(b)	A . Within NYPD Guidelines
B . PO Andre Anderson	Abuse: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson stopped § 87(2)(b)	B . Within NYPD Guidelines
C . SGT Piero Lasaponara	Abuse: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara interfered with § 87(2)(b) use of a recording device.	C . Substantiated
D . SGT Piero Lasaponara	Abuse: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara refused to provide his name to § 87(2)(b)	D . Unfounded
E . SGT Piero Lasaponara	Abuse: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara refused to provide his shield number to § 87(2)(b)	E . Unable to Determine
F . PO Andre Anderson	Abuse: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson refused to provide his name to § 87(2)(b)	F . Within NYPD Guidelines
G . PO Andre Anderson	Abuse: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson refused to provide his shield number to § 87(2)(b)	G . Within NYPD Guidelines
H . SGT Piero Lasaponara	Abuse: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara searched § 87(2)(b)	H . Unable to Determine
I . SGT Piero Lasaponara	Abuse: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara threatened to arrest § 87(2)(b)	I . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
J . SGT Piero Lasaponara	Abuse: At the 70th Precinct stationhouse in Brooklyn, Sergeant Piero Lasaponara detained § 87(2)(b)	J . Within NYPD Guidelines
K . PO Andre Anderson	Abuse: At the 70th Precinct stationhouse in Brooklyn, Police Officer Andre Anderson detained § 87(2)(b)	K . Within NYPD Guidelines
L . SGT Piero Lasaponara	Abuse: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara frisked § 87(2)(b)	L . Within NYPD Guidelines
M . PO Andre Anderson	Abuse: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson frisked § 87(2)(b)	M . Within NYPD Guidelines
N . SGT Piero Lasaponara	Abuse: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara searched § 87(2)(b)	N . Substantiated
O . PO Andre Anderson	Abuse: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson searched § 87(2)(b)	O . Substantiated
P . SGT Piero Lasaponara	Abuse: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara seized § 87(2)(b) property.	P . Unable to Determine
Q . SGT Piero Lasaponara	Abuse: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara failed to provide § 87(2)(b) with a business card.	Q . Unfounded
R . PO Andre Anderson	Abuse: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson failed to provide § 87(2)(b) with a business card.	R . Unfounded
S . SGT Piero Lasaponara	Abuse: At the 70th Precinct stationhouse, Sergeant Piero Lasaponara refused to provide his name to § 87(2)(b)	S . Substantiated
T . SGT Piero Lasaponara	Abuse: At the 70th Precinct stationhouse, Sergeant Piero Lasaponara refused to provide his shield number to § 87(2)(b)	T . Substantiated
U . SGT Piero Lasaponara	Abuse: At the 70th Precinct stationhouse, Sergeant Piero Lasaponara failed to provide § 87(2)(b) with a business card.	U . Substantiated
V . PO Andre Anderson	Abuse: At the 70th Precinct stationhouse, Police Officer Andre Anderson refused to provide his name to § 87(2)(b)	V . Within NYPD Guidelines
W . PO Andre Anderson	Abuse: At the 70th Precinct stationhouse, Police Officer Andre Anderson refused to provide his shield number to § 87(2)(b)	W . Within NYPD Guidelines
X . PO Andre Anderson	Abuse: At the 70th Precinct stationhouse, Police Officer Andre Anderson failed to provide § 87(2)(b) with a business card.	X . Substantiated
Y . SGT Piero Lasaponara	Abuse: At the 70th Precinct stationhouse, Sergeant Piero Lasaponara threatened to arrest § 87(2)(b)	Y . Unable to Determine

Case Summary

§ 87(2)(b) filed this complaint via the CCRB's online website on October 4, 2024.

On August 1, 2024, at approximately 7:35 PM, § 87(2)(b) was with § 87(2)(b) outside of § 87(2)(b) in Brooklyn, when Sgt. Piero Lasaponara and PO Andre Anderson of the Warrant Section approached § 87(2)(b) and asked for his name (**Allegations A and B: Abuse of Authority, Within NYPD Guidelines**). § 87(2)(b) began recording video, and Sgt. Lasaponara told him to back up and swiped his phone away (**Allegation C: Abuse of Authority, Substantiated**). Sgt. Lasaponara allegedly refused to provide his name to § 87(2)(b) (**Allegation D: Abuse of Authority, Unfounded**), and refused to provide his shield number (**Allegation E: Abuse of Authority, Substantiated**), while PO Anderson refused to provide his name and shield number to § 87(2)(b) (**Allegations F and G: Abuse of Authority, Within NYPD Guidelines**). Sgt. Lasaponara then reached into a bag that reportedly belonged to § 87(2)(b) (**Allegation H: Abuse of Authority, Within NYPD Guidelines**). Sgt. Lasaponara told § 87(2)(b) that he was going to be arrested (**Allegation I: Abuse of Authority, Substantiated**). Sgt. Lasaponara and PO Anderson then handcuffed § 87(2)(b) (**Allegations J and K: Abuse of Authority, Within NYPD Guidelines**) and walked him to their police vehicle. Sgt. Lasaponara and PO Anderson frisked § 87(2)(b) (**Allegations L and M: Abuse of Authority, Within NYPD Guidelines**) and searched § 87(2)(b) (**Allegations N and O: Abuse of Authority, Substantiated**). Sgt. Lasaponara took the bag that reportedly belonged to § 87(2)(b) (**Allegation P: Abuse of Authority, Unable to Determine**). Sgt. Lasaponara and PO Anderson allegedly refused to provide their business cards to § 87(2)(b) on scene (**Allegations Q and R: Abuse of Authority, Unfounded**).

Sgt. Lasaponara and PO Anderson then detained § 87(2)(b) at the 70th Precinct stationhouse (also **Allegations J and K: Abuse of Authority, Within NYPD Guidelines**). There, § 87(2)(b) requested Sgt. Lasaponara's and PO Anderson's names, shield numbers, and business cards. Sgt. Lasaponara did not provide his name, shield number, or business card to § 87(2)(b) (**Allegations S, T, and U: Abuse of Authority, Substantiated**). PO Anderson did not provide his name or shield number to § 87(2)(b) (**Allegations V and W: Abuse of Authority, Within NYPD Guidelines**), and did not provide his business card (**Allegation X: Abuse of Authority, Substantiated**). As § 87(2)(b) left the stationhouse, Sgt. Lasaponara allegedly threatened to arrest him (**Allegation Y: Abuse of Authority, Unable to Determine**).

At the stationhouse, § 87(2)(b) received a summons for an open container of alcohol (Board Review 01).

The investigation obtained BWC videos recorded by Sgt. Lasaponara and PO Anderson (Board Review 02 through 05; summarized in Board Review 06). The investigation also obtained cellphone video recorded by § 87(2)(b) (Board Review 07; summarized in Board Review 06).

Findings and Recommendations

Allegation (A) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson stopped § 87(2)(b)

Allegation (J) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara detained § 87(2)(b)

Allegation (K) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson detained § 87(2)(b)

Allegation (L) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara frisked § 87(2)(b)

Allegation (M) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson frisked § 87(2)(b)

Allegation (N) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara searched § 87(2)(b)

Allegation (O) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson searched § 87(2)(b)

§ 87(2)(b) provided a statement to the CCRB on October 16, 2024 (Board Review 08). He stated that he was standing on the sidewalk with his friend, § 87(2)(b) and was holding a non-alcoholic, Arizona-brand beverage and a clear plastic cup of ice. Sgt. Lasaponara and PO Anderson approached from behind, grabbed his wrists, and said that they had a warrant for his arrest. PO Anderson and Sgt. Lasaponara asked § 87(2)(b) for his name and ID, which § 87(2)(b) refused to provide. PO Anderson and Sgt. Lasaponara then told § 87(2)(b) that he was under arrest for an open container. The officers handcuffed § 87(2)(b). PO Anderson then patted him down and reached into his pants pockets. PO Anderson and Sgt. Lasaponara brought § 87(2)(b) to the 70th Precinct stationhouse, where the officers confirmed § 87(2)(b) identity. The officers then released § 87(2)(b) from the stationhouse with a summons for an open container. Note that § 87(2)(b) is a male who stands 5'8" tall, weighs 125 pounds, and has brown hair and brown eyes.

Sgt. Lasaponara provided a statement on February 18, 2025 (Board Review 09). He stated that on August 1, 2024, at 7:35 PM, he and PO Anderson were canvassing for the subject of a bench warrant, § 87(2)(b) near § 87(2)(b) and East 22nd Street in Brooklyn. Between July 18, 2024, and August 1, 2024, PO Anderson had performed computer checks and had made apprehension attempts, wherein he had spoken with people familiar with § 87(2)(b). This investigation led the officers to the vicinity of § 87(2)(b) and East 22nd Street in Brooklyn. Sgt. Lasaponara knew § 87(2)(b) to be 25 years old, about 5'6" to 5'8" tall, 170 to 190 pounds, with brown skin, a goatee, and small dreadlocks that reached his shoulders. On August 1, 2024, while Sgt. Lasaponara drove up along § 87(2)(b) he observed § 87(2)(b) from the front. § 87(2)(b) closely fit the description of § 87(2)(b). Sgt. Lasaponara saw § 87(2)(b) drinking from a three-inch tall clear glass bottle. Sgt. Lasaponara believed there was alcohol in the small glass bottle based on past experience stopping people with similar bottles and issuing summonses for open containers. Sgt. Lasaponara and PO Anderson discussed a plan to apprehend § 87(2)(b) believing he was possibly § 87(2)(b). Sgt. Lasaponara intended to take § 87(2)(b) into custody if he was § 87(2)(b). At this point, Sgt. Lasaponara did not intend to issue a summons for the open container. Sgt. Lasaponara and PO Anderson approached § 87(2)(b) and § 87(2)(b) did not have identical appearances, but § 87(2)(b) very closely resembled § 87(2)(b) in that they had the same hairstyle, facial hair, skin tone, height, weight, and age. Upon approach, § 87(2)(b) refused to give the officers his name or identification despite repeated requests. While speaking with § 87(2)(b) Sgt. Lasaponara could not "get a good look at" him. Sgt. Lasaponara then handcuffed § 87(2)(b) to take him to the stationhouse to issue him a summons there, because § 87(2)(b) refused to provide ID. At this point, Sgt. Lasaponara still believed § 87(2)(b) was § 87(2)(b) but was unsure, and was still trying to identify § 87(2)(b) to confirm whether he was § 87(2)(b). Sgt. Lasaponara then patted § 87(2)(b) down and possibly reached into his pockets. Sgt. Lasaponara both frisked and searched § 87(2)(b) because he was "under arrest" and was going to be placed in a police vehicle and transported to the stationhouse to be identified. When an individual is arrested, officers search the individual's pockets. § 87(2)(b) was under arrest at this point for the open container and was not under arrest for anything else. Sgt. Lasaponara was conducting a field search for weapons and drugs before placing him in the police vehicle, but did not recall ever feeling any objects that resembled a weapon on § 87(2)(b) and never saw any

bulges in his clothing. Sgt. Lasaponara and PO Anderson then transported § 87(2)(b) to the 70th Precinct stationhouse to issue him a summons. While driving back to the stationhouse, Sgt. Lasaponara got a better look at § 87(2)(b) and spoke with him, and realized that he was not § 87(2)(b). At the stationhouse, § 87(2)(b) provided his name to the officers, but § 87(2)(b) did not have identification. § 87(2)(b) was then released with a summons for the open container. During his CCRB interview, Sgt. Lasaponara presented a color version of the black-and-white photo of § 87(2)(b) on § 87(2)(b) bench warrant (Board Review 12). Sgt. Lasaponara explained that this color version of the photo of § 87(2)(b) his and PO Anderson's reference for § 87(2)(b) physical appearance.

PO Anderson provided statements on February 18 and April 24, 2025 (Board Review 10 and 11). He also stated that he and Sgt. Lasaponara were looking for § 87(2)(b) the subject of a bench warrant. At around 7:15 PM on August 1, 2024, PO Anderson visited the home of § 87(2)(b) who told him where § 87(2)(b) often hung out and where PO Anderson could find him. PO Anderson and Sgt. Lasaponara went to the area she described, around § 87(2)(b) in Brooklyn, though PO Anderson did not recall the exact address. About 20 minutes later, while driving along § 87(2)(b) PO Anderson saw § 87(2)(b) and immediately believed he might be § 87(2)(b) because of their physical resemblance and because § 87(2)(b) was at the location that § 87(2)(b) girlfriend had described. PO Anderson intended to stop § 87(2)(b) at this point to identify him and determine whether he was § 87(2)(b). PO Anderson also observed § 87(2)(b) drinking from a small wine bottle. As such, PO Anderson also intended to stop § 87(2)(b) for drinking alcohol in public. PO Anderson and Sgt. Lasaponara approached § 87(2)(b) and asked him for his name, which § 87(2)(b) refused to provide. PO Anderson and Sgt. Lasaponara then handcuffed § 87(2)(b). When officers suspect an individual to be the subject of a warrant, but the individual will not identify themselves, officers are required to bring the individual to a stationhouse to identify them. PO Anderson patted the outside of § 87(2)(b) pockets because he was going to put § 87(2)(b) in a police vehicle to transport him to the stationhouse. § 87(2)(b) was considered detained at this point, not under arrest. PO Anderson did not feel anything that resembled a weapon and did not see any bulge on § 87(2)(b) clothing resembling a weapon. PO Anderson noted that when he patted down one of § 87(2)(b) pockets, he felt something small, hard, circular, and not sharp. He took the object out of § 87(2)(b) pocket to confirm. PO Anderson did not know what sort of weapon this object could have been and did not have any other reason to believe that § 87(2)(b) had a weapon on him. Sgt. Lasaponara and PO Anderson brought § 87(2)(b) to the 70th Precinct stationhouse, where § 87(2)(b) told the officers his name. PO Anderson then wrote § 87(2)(b) a summons for the open container and released § 87(2)(b) from the stationhouse. During his CCRB interview, PO Anderson was presented with a copy of the bench warrant for § 87(2)(b) (Board Review 13). PO Anderson confirmed that he had a higher quality image of § 87(2)(b) for reference when apprehending § 87(2)(b).

PO Anderson's first BWC video (Board Review 02), beginning at 0 minutes 22 seconds, captures PO Anderson and Sgt. Lasaponara approaching § 87(2)(b) on the sidewalk. § 87(2)(b) stands next to a large white metal utilities box with § 87(2)(b) presents as a Black male and has a medium brown complexion, black hair in short locks, and a beard. At 0 minutes 31 seconds, Sgt. Lasaponara grabs § 87(2)(b) arm. At 1 minute 0 seconds, PO Anderson and Sgt. Lasaponara ask § 87(2)(b) for his name, to which § 87(2)(b) replies, "No." At 1 minute 8 seconds, Sgt. Lasaponara says to § 87(2)(b) "You look like somebody we're looking for. What's your name?" PO Anderson and Sgt. Lasaponara continue to ask § 87(2)(b) for his name while § 87(2)(b) does not provide it. At 1 minute 20 seconds, Sgt. Lasaponara says, "Drinking in public," and pulls a small glass bottle with a screw-on top out of a backpack sitting on the white box in between § 87(2)(b) and § 87(2)(b).

Sgt. Lasaponara's second BWC video (Board Review 03), beginning at 1 minute 24 seconds, further captures Sgt. Lasaponara telling § 87(2)(b) "Saw you drinking and put it away. That's why we stopped you."

PO Anderson's first BWC video (Board Review 02), beginning at 1 minute 32 seconds, captures Sgt. Lasaponara telling § 87(2)(b) that he is, "Going in handcuffs." Officers continue to ask repeatedly for § 87(2)(b) name, and § 87(2)(b) repeatedly refuses to provide identifying information. At 1 minute 58 seconds, PO Anderson handcuffs § 87(2)(b). At 2 minutes 5 seconds, Sgt. Lasaponara tells § 87(2)(b) that he is drinking in public and that they need his ID for a summons. § 87(2)(b) again refuses to provide ID.

Additionally, Sgt. Lasaponara's first BWC video (Board Review 03), beginning at 2 minutes 8 seconds, captures Sgt. Lasaponara appearing to pat down and reach into § 87(2)(b) pants pockets. At 2 minutes 40 seconds, officers walk § 87(2)(b) to their police vehicle. At 3 minutes 15 seconds, Sgt. Lasaponara appears to pat down § 87(2)(b) outside the police vehicle. At 3 minutes 23 seconds, Sgt. Lasaponara appears to have his right hand halfway inside § 87(2)(b) waistband.

Likewise, PO Anderson's first BWC video (Board Review 02), beginning at 3 minutes 30 seconds, further captures Sgt. Lasaponara reaching into § 87(2)(b) front left pants pocket while outside of the police vehicle. At 3 minutes 32 seconds, PO Anderson pats down the outside of § 87(2)(b) front left pants pocket, reaches inside, and appears to partially pull out a keychain, which he then returns to § 87(2)(b) pocket. At 3 minutes 45 seconds, § 87(2)(b) gets inside the police vehicle.

The CCRB obtained a copy of the bench warrant for § 87(2)(b) § 87(2)(b) (Board Review 13). The warrant notes that § 87(2)(b) is a 24-year-old Black male with a dark skin tone, who stands 5'9" tall, weighs 160 pounds, and has black hair.

In the color version of the photo of § 87(2)(b) (Board Review 12), § 87(2)(b) appears to be a Black male with a medium brown complexion and has black hair in short locks and a beard.

PO Anderson prepared DD5s regarding the investigation of § 87(2)(b) whereabouts (Board Review 14). An entry from July 25, 2024, notes that PO Anderson conferred with a field intelligence officer from the 70th Precinct. Shortly afterward, he attempted to apprehend § 87(2)(b) at an apartment at § 87(2)(b) in Brooklyn, where he instead spoke with § 87(2)(b) who said she had not seen him since his last court date. An entry from August 1, 2024, notes that PO Anderson interviewed § 87(2)(b) § 87(2)(b) at her apartment, and that she told him that § 87(2)(b) hung out in front of a deli at § 87(2)(b) in Brooklyn. An entry from ten minutes later on August 1, 2024, notes an apprehension attempt at § 87(2)(b) in Brooklyn, and that the subject was not at the location.

A Google Maps search for the distance between the deli at § 87(2)(b) in Brooklyn and § 87(2)(b) in Brooklyn (Board Review 15) noted their distance as 0.3 miles.

The CCRB also obtained a copy of the summons § 87(2)(b) received, for an open container of alcohol (Board Review 01).

New York State Criminal Procedure Law § 120.10 (Board Review 17) states that arrest warrants direct officers to arrest the defendant named and/or described in the warrant. New York State Criminal Procedure Law § 120.80 (Board Review 18) states that a warrant of arrest may be executed on any day of the week and at any hour of the day or night. New York State Criminal

Procedure Law § 530.70(2) (Board Review 19) states that a bench warrant must be executed in the same manner as a warrant of arrest, as provided in section 120.80.

In *People v. Wright*, 100 A.D.2d 523 (1984) (Board Review 20), the court ruled that officers had reasonable suspicion to stop an individual and request that they identify themselves because the officers believed him to be the suspect in a burglary, based on his physical resemblance to a photograph of the suspect, despite that the officers later learned he was not the suspect.

Likewise, in *People v. Fabian*, 126 A.D.2d 664 (1987) (Board Review 21), the court ruled that an officer had probable cause to arrest an individual who the officer believed to be a wanted individual based on his resemblance to a photograph of the wanted individual, despite that the officer mistook the individual's identity for the actual wanted person.

§ 87(2)(g)

Based on BWC video images of § 87(2)(b) photographs of § 87(2)(b) and both § 87(2)(b) and § 87(2)(b) pedigrees, they are the same apparent gender and race, have similar complexions, heights, hairstyles and hair lengths, facial hair, and ages. § 87(2)(g)

it is recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

NYC Administrative Code §10-125 (Board Review 22) states that no person shall drink or consume an alcoholic beverage, or possess, with intent to drink or consume, an open container containing an alcoholic beverage in any public place.

NYPD Patrol Guide Procedure 209-03 (Board Review 23) states that when a violator of NYC Administrative Code §10-125 does not possess a valid form of identification, officers are to remove the violator to the command.

BWC video shows that § 87(2)(b) repeatedly refused to provide his name to officers outside § 87(2)(b) and was later identified at the stationhouse and issued a summons prior to release.

§ 87(2)(g)

it is recommended that **Allegations J and K** be closed as **Within NYPD Guidelines**.

People v. Gamble, 210 A.D.2d 903 (1994) (Board Review 24), states an officer may conduct a pat down frisk as a routine safety measure preliminary to transporting a suspect in a police vehicle.

People v. Williams, 629 N.Y.S.2d 607 (1995) (Board Review 25), states that if, after frisking a pocket, an officer does not feel anything that they believe could be a weapon, they cannot search that pocket.

NYPD Patrol Guide Procedure 209-03 (Board Review 23) states that a violator of NYC Administrative Code §10-125 will receive a Civil Summons returnable to the Office of Administrative Trials and Hearings (OATH). NYPD Patrol Guide Procedure 209-12 (Board Review 27) states that officers are to issue civil summonses for OATH violations they observed.

§ 87(2)(g) it is recommended that **Allegations L and M** be closed as **Within NYPD Guidelines**.

Patrol Guide Procedures 209-03 and 209-12 direct officers to issue summonses for violating NYC Administrative Code §10-125, and not to arrest. § 87(2)(g) it is recommended that **Allegation N** be closed as **Substantiated**.

§ 87(2)(g) it is recommended that **Allegation O** be closed as **Substantiated**.

Allegation (C) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara interfered with § 87(2)(b) use of a recording device.

Although not alleged by § 87(2)(b) PO Anderson's first BWC video (Board Review 02), beginning at 0 minutes 59 seconds, captures § 87(2)(b) appearing to record the officers' interaction with § 87(2)(b) using a cellphone, while sitting about two feet away. Sgt. Lasaponara and PO Anderson grab § 87(2)(b) wrists and arms and § 87(2)(b) for his name. At 1 minute 2 seconds, Sgt. Lasaponara reaches toward § 87(2)(b) phone and appears to touch the phone while swiping at it and says, "Put your camera down, sir." § 87(2)(b) lowers the phone for one second before raising it again and continuing to record the interaction.

Sgt. Lasaponara (Board Review 09) stated that § 87(2)(b) began recording on a cellphone and was about an arm's length away from him. Sgt. Lasaponara then put his hand up in the direction of § 87(2)(b) and told him to step back because § 87(2)(b) was close to him. Sgt. Lasaponara also believed § 87(2)(b) could be with another violent person because § 87(2)(b) had a criminal history involving firearms, and he did not want to put himself and PO Anderson in danger. There

NYPD Administrative Guide 304-21 (Board Review 28) states that individuals have a right to lawfully observe and record police activity including but not limited to detentions, searches, arrests or uses of force. The right to lawfully observe and record police activity extends to individuals in public places, such as streets, sidewalks, and parks. It further states that officers are not permitted to intentionally prevent, attempt to prevent, or discourage an individual from recording police activities.

Allegation (D) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara refused to provide his name to § 87(2)(b)

Allegation (E) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara refused to provide his shield number to § 87(2)(b)

Allegation (F) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson refused to provide his name to § 87(2)(b)

Allegation (G) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson refused to provide his shield number to § 87(2)(b)

Sgt. Lasaponara's first BWC video (Board Review 03), beginning at 0 minutes 30 seconds, captures Sgt. Lasaponara and PO Anderson approaching and appearing to speak to § 87(2)(b). This video does not contain any audio until 60 seconds.

Page 7

§ 87(2)(b) repeatedly asking Sgt. Lasaponara and PO Anderson for their names and shield numbers. At 3 minutes 23 seconds, § 87(2)(b) says again, “I would like your name and badge. I got no name for y’all.” § 87(2)(b) tells the officers to identify themselves. At 3 minutes 30 seconds Sgt. Lasaponara says to § 87(2)(b) “We’re the police department. Sgt. Lasaponara,” At no point does Sgt. Lasaponara provide his shield number to § 87(2)(b) and at no point does PO Anderson verbally provide his name or shield number to § 87(2)(b).

Sgt. Lasaponara (Board Review 09) stated that while on § 87(2)(b) § 87(2)(b) asked him for his name about fifty to sixty times. Sgt. Lasaponara provided his name once to § 87(2)(b) when escorting him into the police vehicle but did not provide it every time § 87(2)(b) asked, because he was investigating and § 87(2)(b) was causing a scene. § 87(2)(b) also asked Sgt. Lasaponara for his shield number, and Sgt. Lasaponara believed he provided it to § 87(2)(b) but he was not sure whether this was captured on BWC. § 87(2)(b) requested Sgt. Lasaponara’s shield number about 50 times. Sgt. Lasaponara did not provide § 87(2)(b) with his shield number upon each of § 87(2)(b) requests because § 87(2)(b) was very repetitive, possibly intoxicated or under the influence of drugs, and kept repeating the same questions.

PO Anderson (Board Review 10) stated that while on § 87(2)(b) § 87(2)(b) asked multiple times for his name. PO Anderson did not have a chance to say his name to § 87(2)(b) when he asked because § 87(2)(b) was speaking loudly and PO Anderson was trying to identify him. There was no other reason why PO Anderson did not provide his name to § 87(2)(b). PO Anderson did not recall whether he ever provided his name to § 87(2)(b). § 87(2)(b) asked PO Anderson for his shield number. PO Anderson did not remember whether he ever refused to provide his shield number to § 87(2)(b) and did not recall whether he ever provided it to § 87(2)(b).

§ 87(2)(b) received a summons for having an open container of alcohol during this incident that included PO Anderson’s name and tax ID number (Board Review 01).

NYPD Administrative Guide Procedure 304-11 (Board Review 29) states that uniformed members of service must courteously and clearly state their rank, name, shield number, and command, or otherwise provide them, to anyone who requests them to do so.

BWC video captures Sgt. Lasaponara verbally providing his name to § 87(2)(b) while outside § 87(2)(b) § 87(2)(g). § 87(2)(b) it is recommended that **Allegation D** be closed as **Unfounded**.

BWC footage captures § 87(2)(b) repeatedly requesting Sgt. Lasaponara’s shield number, and at no point in any video does Sgt. Lasaponara provide his shield number to § 87(2)(b) § 87(2)(g). § 87(2)(b) § 87(2)(g) it is recommended that **Allegation E** be closed as **Unable to Determine**.

BWC footage captures § 87(2)(b) repeatedly requesting PO Anderson’s name and shield number. The summons § 87(2)(b) received from this incident includes both PO Anderson’s name and tax ID number. § 87(2)(g) § 87(2)(g) § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations F and G** be closed as **Within NYPD Guidelines**.

Allegation (H) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara searched § 87(2)(b)

§ 87(2)(b) (Board Review 08) stated that § 87(2)(b) had a backpack. § 87(2)(b) stood near § 87(2)(b) when PO Anderson and Sgt. Lasaponara approached. Later, while § 87(2)(b) was at the stationhouse, officers found a sealed wine bottle inside the backpack.

The cell phone video recorded by § 87(2)(b) (Board Review 07), beginning at 0 minutes 4 seconds, captures an open, unzipped backpack sitting on the white utilities box about a foot in front of § 87(2)(b) and between § 87(2)(b) and § 87(2)(b). The blue screw-top lid of a bottle is visible inside the main compartment of the backpack. At 0 minutes 5 seconds, Sgt. Lasaponara pulls one side of the backpack open, looks inside, revealing what appears to be a small, clear, glass bottle with a blue screw-top lid.

PO Anderson's first BWC video (Board Review 02), beginning at 1 minute 20 seconds, captures Sgt. Lasaponara saying, "Drinking in public." Sgt. Lasaponara then reaches into the backpack in front of § 87(2)(b) and pulls out a clear glass bottle, which is mostly empty with a small amount of dark red liquid at the bottom, and which had a blue screw-top, and places it on the white box. The bottle appears to be a small, empty wine bottle.

Sgt. Lasaponara's first BWC video (Board Review 03), beginning at 1 minute 24 seconds, further captures Sgt. Lasaponara saying to § 87(2)(b) "Saw you drinking and put it away." At 2 minutes 27 seconds, § 87(2)(b) begins repeatedly telling Sgt. Lasaponara that the black backpack belongs to him.

At no point during any BWC or cellphone video (Board Review 02 to 07) does § 87(2)(b) appear to hold or drink from any bottle apparently containing alcohol. The videos do not show § 87(2)(b) behavior prior to the interaction with police.

The investigation made multiple contact attempts to § 87(2)(b) by phone and by mail but was unable to reach him (Board Review 30 to 46).

Sgt. Lasaponara (Board Review 09) stated that there was a black backpack on the utilities box near § 87(2)(b) and § 87(2)(b). Sgt. Lasaponara believed the backpack belonged to § 87(2)(b) and not § 87(2)(b) because the bag was in front of § 87(2)(b). Sgt. Lasaponara also believed that bag belonged to § 87(2)(b) because he saw § 87(2)(b) place the bottle of alcohol in the backpack. Upon approach, the backpack was open, and inside of it, Sgt. Lasaponara saw the bottle from which § 87(2)(b) had been drinking. Sgt. Lasaponara reached inside the bag to take the bottle out of the bag so that he could show § 87(2)(b) that he knew he was drinking, and for no other reason.

As noted, § 87(2)(b) received a summons for an open container of alcohol (Board Review 01).

The ruling in *People v. J.S.*, 193 N.Y.S.3d 620 (2023) (Board Review 47), states that under the plain view doctrine, an officer may seize an object without a warrant if the officer is lawfully in the position from which the object is viewed, the officer has lawful access to the object, and the object's incriminating nature is immediately apparent.

§ 87(2)(g)

it is recommended that **Allegation H** be closed as **Unable to Determine**.

Allegation (I) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara threatened to arrest § 87(2)(b)

§ 87(2)(b) (Board Review 08) stated that after the officers asked him for his name, and he refused to provide it two or three times, Sgt. Lasaponara said that § 87(2)(b) was under arrest for an open container.

In PO Anderson's first BWC video (Board Review 02), beginning at 1 minute 49 seconds, Sgt. Lasaponara tells § 87(2)(b) "You're going to go to jail. I'm telling you right now, you're going to go to jail."

Sgt. Lasaponara (Board Review 09) stated that he told § 87(2)(b) that he was going to be arrested. Sgt. Lasaponara said this because § 87(2)(b) had committed the violation of having an open container of alcohol, and for no other reason.

The summons § 87(2)(b) received during this incident for having an open container of alcohol (Board Review 01) states at the top of the document that it is an OATH summons and lists the specific violation as Administrative Code 10-125.

NYC Administrative Code §10-125 (Board Review 22) states that no person shall drink or consume an alcoholic beverage, or possess, with intent to drink or consume, an open container containing an alcoholic beverage in any public place.

As noted, NYPD Patrol Guide Procedure 209-03 (Board Review 23) states that a violator of NYC Administrative Code §10-125 may be written as a violation on a Civil Summons returnable to the Office of Administrative Trials and Hearings (OATH), and NYPD Patrol Guide Procedure 209-12 (Board Review 27) states that officers are to issue civil summonses for OATH violations they observed.

§ 87(2)(g)

it is recommended that **Allegation I** be closed as **Substantiated**.

Allegation (P) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara seized § 87(2)(b) property.

§ 87(2)(b) (Board Review 08) stated that Sgt. Lasaponara and PO Anderson took § 87(2)(b)

backpack and brought it to the stationhouse with § 87(2)(b) Sgt. Lasaponara and PO Anderson told him that they brought § 87(2)(b) backpack back to the stationhouse because they thought it belonged to § 87(2)(b) and that it would have his identification inside. § 87(2)(b) did not know why the officers thought § 87(2)(b) backpack belonged to him.

Sgt. Lasaponara's first BWC video (Board Review 03), beginning at 2 minutes 27 seconds, captures the backpack about a foot in front of § 87(2)(b) between § 87(2)(b) and § 87(2)(b) on the utilities box. Sgt. Lasaponara picks up the backpack and asks § 87(2)(b) "This your bag?" § 87(2)(b) says, "My bag," and says twice, "You can't touch my bag." At 2 minutes 31 seconds, § 87(2)(b) tells Sgt. Lasaponara, "The bag is my property, sir." § 87(2)(b) asks, "So, can I get my bag?" § 87(2)(b) tells Sgt. Lasaponara, "Give me my bag." Sgt. Lasaponara walks § 87(2)(b) to the police vehicle with the backpack. At 2 minutes 49 seconds, § 87(2)(b) yells, "Hello? I need my bag. Give me my bag. That's my bag." Sgt. Lasaponara continues walking away with § 87(2)(b) and ignores § 87(2)(b) At 3 minute 5 seconds, § 87(2)(b) says from offscreen, "Can I get my bag?" At 3 minutes 19 seconds, § 87(2)(b) is still offscreen when he says, "You can't just take my bag."

PO Anderson's first BWC video (Board Review 02), beginning at 10 minutes 0 seconds, captures PO Anderson taking the backpack out of the police vehicle upon arrival at the 70th Precinct stationhouse.

Sgt. Lasaponara (Board Review 09) stated that he believed the bag belonged to § 87(2)(b) because the bag was in front of him, and Sgt. Lasaponara saw § 87(2)(b) put the bottle in the bag. Sgt. Lasaponara also believed this was § 87(2)(b) bag because he believed § 87(2)(b) cellphone was inside the bag. § 87(2)(b) told Sgt. Lasaponara that the black backpack was his bag, but Sgt. Lasaponara did not believe the bag belonged to § 87(2)(b) because he saw § 87(2)(b) put something in the bag.

As noted, the investigation made multiple contact attempts to § 87(2)(b) by phone and by mail, but was unable to reach him (Board Review 30 to 46).

§ 87(2)(g)

BWC footage captures § 87(2)(b) repeatedly telling officers that the bag belonged to him.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation P** be closed as **Unable to Determine**.

Allegation (Q) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Sergeant Piero Lasaponara failed to provide § 87(2)(b) with a business card.

Allegation (R) Abuse of Authority: Outside of § 87(2)(b) in Brooklyn, Police Officer Andre Anderson failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) (Board Review 08) stated that while outside § 87(2)(b) after he was handcuffed, he asked both Sgt. Lasaponara and PO Anderson over eight times each for their business cards, and both officers ignored § 87(2)(b) requests and never gave him any business card.

At no point during any BWC video (Board Review 02 to 05) or cellphone video (Board Review 07) does § 87(2)(b) ask Sgt. Lasaponara or PO Anderson for their business cards on scene outside of

§ 87(2)(b)

Given that BWC footage captures § 87(2)(b) entire interaction with officers outside of § 87(2)(b) after he was handcuffed, and does not show him asking Sgt. Lasaponara or PO Anderson for their business cards, § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations Q and R** be closed as **Unfounded**.

Allegation (S) Abuse of Authority: At the 70th Precinct stationhouse, Sergeant Piero Lasaponara refused to provide his name to § 87(2)(b)

Allegation (T) Abuse of Authority: At the 70th Precinct stationhouse, Sergeant Piero Lasaponara refused to provide his shield number to § 87(2)(b)

Allegation (U) Abuse of Authority: At the 70th Precinct stationhouse, Sergeant Piero Lasaponara failed to provide § 87(2)(b) with a business card.

Allegation (V) Abuse of Authority: At the 70th Precinct stationhouse, Police Officer Andre Anderson refused to provide his name to § 87(2)(b)

Allegation (W) Abuse of Authority: At the 70th Precinct stationhouse, Police Officer Andre Anderson refused to provide his shield number to § 87(2)(b)

Allegation (X) Abuse of Authority: At the 70th Precinct stationhouse, Police Officer Andre Anderson failed to provide § 87(2)(b) with a business card.

Allegation (Y) Abuse of Authority: At the 70th Precinct stationhouse, Sergeant Piero Lasaponara threatened to arrest § 87(2)(b)

§ 87(2)(b) (Board Review 08) stated that at the stationhouse desk, he asked Sgt. Lasaponara and PO Anderson for their business cards, and that they never provided business cards to him. Just prior to leaving the stationhouse, in the lobby, § 87(2)(b) also asked Sgt. Lasaponara and PO Anderson for their names and shield numbers, and Sgt. Lasaponara told § 87(2)(b) that his name was on the summons and that § 87(2)(b) would be arrested if he did not leave the stationhouse.

PO Anderson's first BWC video 1 of 2 (Board Review 02), beginning at 10 minutes 8 seconds, captures § 87(2)(b) Sgt. Lasaponara, and PO Anderson outside of the 70th Precinct stationhouse, when § 87(2)(b) says loudly, "And I would like both of your names, and I would like your card." PO Anderson stands at the open passenger door of the police vehicle, § 87(2)(b) is sitting in the police vehicle in the rear passenger seat, and Sgt. Lasaponara walks around the back of the vehicle. At 10 minutes 14 seconds, Sgt. Lasaponara opens the vehicle's passenger door and § 87(2)(b) says, "I would like both of your names and badge numbers," as PO Anderson stands to Sgt. Lasaponara's left. At 10 minutes 25 seconds, Sgt. Lasaponara and PO Anderson begin to walk § 87(2)(b) to the stationhouse when § 87(2)(b) says again, "I would like your name and badge numbers." Sgt. Lasaponara replies, "That's fine. It should be on the summons." At 10 minutes 28 seconds, § 87(2)(b) repeats, "I would like your names and badge numbers. I would like your names and badge." At 10 minutes 42 seconds, while entering the stationhouse lobby, § 87(2)(b) says, "I would like their names and badge numbers, please." At 12 minutes 28 seconds, while § 87(2)(b) and PO Anderson are at the stationhouse desk, § 87(2)(b) says, "I want both of y'all names and badge numbers," and "I wanted both of it." An officer offscreen, possibly behind the desk, says, "I'll write it down for you, sir. I'll give you my name and card." PO Anderson says, "I got you." At 16 minutes 18 seconds, at the desk, § 87(2)(b) says, "Please, I would like y'all name and badge numbers." The officer offscreen replies, "We'll put it on a nice fancy business card for you, sir."

In PO Anderson's second BWC video (Board Review 05), beginning at 1 minute 2 seconds, as § 87(2)(b) is being released from the stationhouse, § 87(2)(b) says, "Sir, I would like that name and

badge number. I would like the business card.” Sgt. Lasaponara, standing behind the desk, replies, “Sure. Everything is on the summons for you, okay?” § 87(2)(b) says, “Yes.” At 1 minute 12 seconds, § 87(2)(b) says, “I would like them business cards. That’s the only interest I have are them business cards. Thank you.” At 1 minute 25 seconds § 87(2)(b) says, “I would like all them

business cards. Yes.” § 87(2)(b) then begins to leave the stationhouse. BWC footage does not capture § 87(2)(b) exiting the stationhouse.

At no point during any BWC video at the stationhouse (Board Review 02 to 05) does Sgt. Lasaponara or PO Anderson provide their name, shield number, or business card to § 87(2)(b). None of these videos show Sgt. Lasaponara saying that § 87(2)(b) will be arrested. BWC videos do not show whether Sgt. Lasaponara and § 87(2)(b) had any additional interaction at the stationhouse prior to § 87(2)(b) departure.

The summons § 87(2)(b) received includes PO Anderson’s name and tax ID number (Board Review 01). It does not include Sgt. Lasaponara’s identifying information.

The investigation received negative results in response to a request for surveillance video from the 70th Precinct stationhouse for this incident (Board Review 48). Stationhouse video expired before this complaint was filed.

Sgt. Lasaponara (Board Review 09) stated that at the stationhouse desk, § 87(2)(b) asked Sgt. Lasaponara for his name “countless” times. Sgt. Lasaponara did not recall whether he ever provided his name to § 87(2)(b) at any point during their interactions at the stationhouse. § 87(2)(b) also likely asked Sgt. Lasaponara for his shield number while at the stationhouse, and Sgt. Lasaponara recalled telling § 87(2)(b) he would write his shield number down for him, but did not recall ever giving it to him. § 87(2)(b) also asked officers for their business cards while at the stationhouse, but because § 87(2)(b) was shouting his request, Sgt. Lasaponara did not know whether § 87(2)(b) was talking to him or all the other officers at the stationhouse. § 87(2)(b) never directly asked Sgt. Lasaponara for his business card and Sgt. Lasaponara did not remember ever giving his business card to § 87(2)(b). Sgt. Lasaponara believed he was going to write down his information, but he did not know whether § 87(2)(b) ever received this information. If § 87(2)(b) asked Sgt. Lasaponara for his business card, Sgt. Lasaponara would be required to provide it.

PO Anderson (Board Review 10) stated that § 87(2)(b) asked for his name at the stationhouse, but PO Anderson did not recall how many times § 87(2)(b) asked. PO Anderson did not recall whether he ever provided his name to § 87(2)(b). § 87(2)(b) asked PO Anderson for his shield number, but PO Anderson did not recall whether he ever provided his shield number to § 87(2)(b). § 87(2)(b) asked PO Anderson for his business card while at the stationhouse, and PO Anderson never provided § 87(2)(b) with a business card because he was not required to, as § 87(2)(b) was issued a summons.

NYPD Administrative Guide Procedure 304-11 (Board Review 29) states that uniformed members of service must courteously and clearly state their rank, name, shield number, and command, or otherwise provide them, to anyone who requests them to do so, and are required to carry both pre-printed and generic business cards and must offer business cards for law enforcement activities, including stops, aside from instances when a summons is issued, or an arrest is made, and must also offer business cards upon request.

BWC video captures the officers’ interactions with § 87(2)(b) while at the stationhouse and captures § 87(2)(b) asking both Sgt. Lasaponara and PO Anderson multiple times for their names,

shield numbers, and business cards. § 87(2)(g)

it is recommended that **Allegations S, T, and U** be closed as **Substantiated**.

§ 87(2)(g) PO Anderson provided his name and tax ID number on the summons he issued to § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations V and W** be closed as **Within NYPD Guidelines**. § 87(2)(g)

it is therefore recommended that **Allegation X** be closed as **Substantiated**.

§ 87(2)(g)

it is recommended that **Allegation Y** be closed as **Unable to Determine**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- Sgt. Lasaponara has been a member of service for 16 years and has been a subject in 12 other CCRB complaints and 25 other allegations, of which three were substantiated:
 - Case 201301007 involved one substantiated allegation of Entry and/or Search of premises against Sgt. Lasaponara. The Board recommended Instructions and the NYPD imposed no penalty.
 - Case 201810023 involved one substantiated allegations of Failure to provide RTKA card against Sgt. Lasaponara. The Board recommended Command Level Instructions and the NYPD imposed Instructions.
 - Case 201904088 involved one substantiated allegation of Entry of premises against Sgt. Lasaponara. The Board recommended Command Discipline B, and the NYPD imposed Command Discipline A/Forfeiture of five vacation days.
 - § 87(2)(g)
- PO Anderson has been a member of service for five years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of April 10, 2025, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 50).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 12

Investigator:	<u>Mimi Western</u>	<u>Inv. Mimi Western</u>	<u>April 25, 2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Samuel Ross</u>	<u>IM Samuel Ross</u>	<u>04/28/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date